

Unit - IV

Q) Write a note on Drug and Magic Remedies Act
A) The Drug and Magic Remedies Act 1954
also called Objectional Advertisement Act

- It is seen in India that some person are selling magic remedies such as Kavachas, Mantras, Talismans
- Likewise advertisements in magazines, newspapers and on premises of some doctors, Hakims or Vaidas were also found claiming to cure disease not cured by any other drug or treatment

Objective

- To prohibit objectional advertisement related to magic and remedy.
- To prevent selling of magic remedies such as Kavachas, mantras, Talismans etc which are claimed to be universal cure of any disease

Definitions

- 1) Drug:- any chemical substances or medicines are used for internal or external treatment of Human beings or animals or used for diagnosis, cure treatment

2) Magic Remedy :- This includes a talisman (a ring or stone that brings luck), mantra, Kavacha have miraculous power or in the cure, diagnosis or treatment of disease

Prohibition of Certain Advertisements

1) Advertisement of drugs

- For mis carriage or for preventing conception in women
- For removing menstrual disorder in women
- The diagnosis, cure, mitigation, treatment or prevention of any disease, disorder or condition specified in Schedule I of D/C Act, 1940

2) Advertisement which

- Directly or indirectly gives a false impression regarding the true character of the drug
- Makes a false claim of the drug

3) Advertisement of magic remedies, claiming to be efficient in any conditions produced by the person who wants to carry out the profession of administering magic remedies

Classes of Exempted Advertisements

- Any registered medical practitioner has displayed advertisements on sign board or notice his building & showing that treatment of any disease or disorder
- Any matter related to the disease or disorder showing on the book or treatise
- Any advertisement relating to a drug printed or published by the state or central government
- Any advertisement labels or packs of instructions are permitted under D/C Act and Rules

Offence and Penalties

Offences	Penalties
A) Under the Act & Rules → First conviction → Second conviction	6 month or fine or both 1 yr or fine or both
B) Company disobeys or breaks the provision of the Act, every person who was on the charge of the company when the offence was committed	Imprisonment or fine or both

Q) Write about the objectives of Prevention of Cruelty Animal Act - 1960 & Guideline for Breeding and Stocking of Animals?

A) Objective of Prevention of Cruelty to Act are:-

- The act promotes Animal Welfare In general
- The act protects animals from unnecessary pain or suffering
- The act advises the government on matter related to animal welfare including prevention of unnecessary pain & medical care & attention in animal Hospital
- The Act gives financial and other assistance to Animal Welfare organization

Guideline for Breeding and Stocking of Animals

A) Breeding for Business Organization

- Applicant must have registered and trade of Animal for Purpose of Experiment
- For registration the applicant shall have filled in a specific format and submitted to Member-secretary or authorized person appointed by the committee
- They shall apply for registration within sixty days from the date of commencement of the Breeding and experiment on animals under the Rules 1998
- Stop of Breeding Animals in case committee refuses to give registration

B) Guideline for Breeders for University and Colleges

- Govt of India has set up the "Committee" for the purpose of control and supervision of experiments on animals under the Ministry of Social Justice & Empowerment, Shastri Bhawan, New Delhi. This committee shall look over registration process.
- The applicant shall ~~open~~ apply in prescribed format for registration to the committee and the application shall have verified information relating to premises where the experiments are to be conducted, animal housing facilities & detail of breeding of animals and availability of trained manpower in Handling of Animals.
- After verification, the committee satisfied, the registration is approved for such breeder.
- Every registered breeder shall comply all the condition at the time of registration.
- The committee or authorized person shall examine the register during inspection.

Guidelines for stock of Animals

- Animal Houses shall be located in a quite atmosphere
- The premises shall keep in clean and Hygienic condition
- Animal shall have protected from drought and extreme weather
- Animal shall have specific cage so that they can live in comfort and not to be overcrowded
- Proper care of animals and the cages and stall shall maintain the standard laid down by the Indian Standard Institution
- Animal attendant must be suitably trained and experienced in their duties

Q) Write about the composition of IAEC and Guidelines for transfer and acquisition of animals for experiments?

A) IAEC stands for Institutional Animal Ethics Committee and it consist of :-

- A Biological Scientist → Two scientist from different biological dep.
- A veterinarian physician → A scientist from outside of the institute on
- A scientist from animal facility of the establishment
- A representative of the Committee for the Purpose of Control and Supervision of Experiments on Animals (CPCSEA)

Guidelines for Transfer and Acquisition of Animals :-

- Every breeder has a registra^{tion} and shall apply for experimental activity permission directly to the Secretary or authorized person of IAEC by stating names of the species and the number of animal acquired
- The committee shall scrutiny the application, if satisfied may grant the permission for conducting experiment
- While granting permission, a condition is required that animals are not suffering necessary pain during or after experiments on them

- Person carrying on experiments on animals should inform authority about completion of experiment for which the permission has been granted
- Transfer of any animal for sale purpose to an unregistered breeder is not permitted
- A breeder can't acquire any animal by sale except from a registered breeder
- Experiment in production / breed improvement programme; animals may be given out by breeder institution for domestic use
- Import of any animal available in the country is also not allowed.

Records

- Every registered breeder / IAEC should maintain record of the animals and furnish them to the committee from time to time
- All laboratory shall inform exact number of animals used in a specified format to the secretary or authorized person

Offences and Penalties

Offences	Penalties
1) Treating Animals Cruelty	→ Imprisonment + Fine of Rs 10 to 50 on first conviction → Punishment 1 year + Fine ₹ 25 to 100 on subsequent conviction
2) Performing the operation like Phooka or doom dev: any cow or other milch animal or any other operation to improve lactation which is injurious to the Health of the Animal	→ Imprisonment up to 2 years + fine up of Rs ₹1000 or both
3) Contravention of an order made by Committee or breach of any condition imposed by the Committee	→ Punishable with fine up to Rs ₹200

(Q) Write the function of CPCSEA?

A) CPCSEA stands for Committee for the Purpose of Control and Supervision of Experiments on Animals.

Functions of CPCSEA are as follows.

- Registration of facility using animals for research or breeding them specifically for such purpose
- Nominees are selected and assigned to the Institutional Animal Ethics Committee
- Animal House Facilities approval is based on reports from CPCSEA Inspection
- Permissions to perform animal using experimentation
- Improving the process of registration for Breeding and Stocking of Animals
- When any legal requirements are broken, take action against the establishment
- Conducting training programmes for CPCSEA nominees
- Conducting or Supporting a workshop or conference on animal ethics

Q) Write a note on National Pharmaceutical Pricing Authority and DPCO 2013?

A) National Pharmaceutical Pricing Authority (NPPA) is a government regulatory agency that controls the price of pharmaceutical drugs in India.

→ NPPA enables the government to declare a ceiling ^(max) price for essential and lifesaving medicines so as to ensure that these medicines are available at a reasonable price to the general public.

→ NPPA was constituted by Government of India dated 29th August 1997 as an attached office of the Department of Pharmaceuticals (DOP), Ministry of Chemical and Fertilizers as an Independent Regulator for pricing of drugs and to ensure availability and accessibility of medicines at affordable price.

Organization

- Chairman → Member Secretary → Advisor (Pricing)
- Director (Formulation Division) → Director (Monitoring & Enforcement Division)
- Director (Legal Division)

Functions of NPPA

- To implement & enforce the provisions of DPCO in accordance with powers delegated to it
- To deal with all legal matters arising out of the decisions of the Authority
- To render advice to the Central Government on changes / revisions in the drug policy
- To collect / maintain data on production, export & import, market share of individual companies, profitability of companies etc for bulk drugs and formulation

Drug Price Control Order (DPCO) is an order issued by the government under the Essential Commodities Act 1955 which enables it to fix the prices of some essential bulk drugs and their formulations.

Objective of DPCO

- It ensures the availability of medicines & drugs in the market
- It controls the rate of essential and life saving medicines & make sure to release them at reasonable price

- Helps in encouraging cost effective production with economic size
- Effective for introducing new technologies and new drugs in the market

Retail Price of Formulation

$$RP = (MC + CC + PM + PC) * (1 + MAPE/100) + ED$$

RP = Retail Price

MC = Material Cost

CC = Conversion Cost

PM = Packaging Material

PC = Packaging Charge

ED = Excise Duty

MAPE = Max^m Allowable Post Manufacturing Expense

Q) Enumerate the retail price and ceiling price of scheduled formulation?

A) Ceiling Price of a scheduled formulation of specified strengths and dosages shall be calculated as under:-

Step 1:- First the Average Price to Retailer of the Scheduled Formulation i.e. $P(s)$ shall be calculated as below:-

Average Price to Retailer $P(s)$ = $\frac{\text{Sum of prices to Retailer of all the brands and generic versions of the medicine Having market share more than or equal to one percent of the total market turnover on the basis of moving annual turnover of that medicine}}{\text{Total no. of such brands and generic versions of the medicine Having market share more than or equal to one percent of total market turnover on the basis of moving annual turnover of that medicine}}$

Step 2:- Thereafter the ceiling price of the scheduled formulation i.e. $P(c)$ shall be calculated as below

$$P(c) = P(s) * (1 + m/100)$$

Where

$P(s)$ = Average Price to Retailer

m = % Margin to retailer & its value = 16

Ceiling price means a price fixed by the Government for Scheduled Formulations in accordance with the provision of this order

Retail price is the final price of an item at a retail store as seen by the customer

Maximum Retail Price = Ceiling Price + Local taxes as applicable